

Disconnection amendments that would pre-empt Clauses 4.35–4.39

Drawn from every lean summary in the corpus that cites Clauses 4.35 to 4.39 of the U.P. Electricity Supply Code, 2005 — temporary and permanent disconnection, minimum charges, and reconnection. · 6 September 2026

26 CITING CASES	13 MERITS CONSTRUCTIONS	8 LITIGATION CLUSTERS	8 CODE CHANGES	4.35–4.39 PRINCIPAL CLAUSES
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These twenty-six cards are not twenty-six disconnection problems. They are **one sequence that the Code never finishes**: live connection → fifteen-day notice → temporary disconnection → six months of minimum charges → permanent disconnection → dormant / final account → reconnection or a new connection. Amendment 3 of 2006 already tried three of the forks (4.38(c) now points at 4.14(g); surcharge is capped at eight months; Annexure 4.9 no longer says forty-five days). The Allahabad High Court has been writing the remaining forks for twenty years. The first wave below absorbs those forks so the next temporary disconnection cannot be billed for five years, and the next permanent disconnection cannot be refused, or granted, on a ground the clause never named.

Clause 4.35 is only the apparatus rule (remove the meter after permanent disconnection; usually leave it after a temporary one). Clause 4.36 is the notice catalogue. Clause 4.37 is the aftermath of a temporary disconnection — minimum charges, Annexure 4.9, permanent disconnection after six months, then a dormant connection and a final account. Clause 4.38 is the closed list of permanent-disconnection grounds. Clause 4.39 is reconnection. Almost every card in this set is a court filling a blank between those five clauses: whether “shall” is a duty or a power, when billing actually stops, whether a consumer can force a permanent disconnection, and whether a permanently disconnected line can ever be switched back on.

1. How the cards cluster
2. What the Code already says — and the Amendment 3 patch
3. The amendment that does most of the work — new Clause 4.35A (the status clock)
4. Minimum charges: consumer default, six-month hard stop, three exclusions
5. Permanent disconnection: a duty, a closed list, and a consumer right
6. Merge consumer-initiated disconnection — 4.14(g) is 4.38(c)
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1. How the cards cluster eight failure modes, not twenty-six doctrines

CLUSTER	WHAT THE COURT HAS HAD TO SAY	WHAT THE CODE NEVER FINISHES
Shall or may?	<i>Satya Narayan</i> SCJ-113 : Clause 4.36 is a mandatory duty to notice-and-disconnect inside the two-year window. <i>Satish Kumar</i> SCJ-595 : licensee admitted it ought to TDC then PDC within six months. <i>Parvati Devi</i> SCJ-281 : the same clauses <i>empower</i> the licensee; a bill-disputing consumer cannot compel PD in writ. <i>Petitioner</i> SCJ-447 : the duty question remitted, not decided.	4.37(a) and 4.38(b) both say “shall” be permanently disconnected after six months. They do not say whether that is a billing stop, a physical act, a consumer right, or a licensee discretion.

CLUSTER	WHAT THE COURT HAS HAD TO SAY	WHAT THE CODE NEVER FINISHES
Minimum charges	<i>Harihar Cold Storage</i> SCJ-030 : 4.37 min charges only if the temporary disconnection is the consumer's default, not a burnt transformer. <i>Rais Ahmad</i> SCJ-1141 : five years of min charges, relegated. <i>Rani Agrawal</i> SCJ-684 : Apex-Court-ordered disconnection, relegated. <i>Surbeer Singh</i> SCJ-757 : interlocutory seven-or-eight-month cap.	4.37(a) says bill on minimum charges, then PD after six months, then stop billing <i>after inspections</i> . It never says the six months is a maximum, and never names licensee-fault or court-ordered outage.
Closed list of PD grounds	<i>Mohd. Asif</i> SCJ-1847 : a connection once granted may be disconnected only under 4.38; a property-ownership dispute is not a ground.	4.38 says "in following cases". It never says "only", and never has a negative list.
Consumer-requested PD	<i>Jagdish Verma</i> SCJ-1257 : PD on request; an application in a dead man's name, acted on the same day without a dues report, is not the procedure. <i>Sagufta Ishrar</i> SCJ-357 : inspect in her presence, intimate dues, then PD. <i>Ghanshyam</i> SCJ-328 : paid "P.D. Final Amount" bars a later demand; format is directory. <i>Sarita Agnihotri</i> SCJ-1964 : PD on request subject to 4.38.	Two doors: 4.38(c) (now "as described under 4.14(g)") and 4.14(g) itself (30-day notice, final bill, deemed termination). Courts still have to choose which door, and licensees still refuse for want of Annexure 4.7.
Reconnect or new connection?	<i>Manoj Kumar</i> SCJ-609 : a permanently disconnected connection cannot be reconnected; apply afresh. <i>Satya Prakash Singhal</i> SCJ-1563 : after PD on theft, 4.39 read with the second proviso to s.135(1A) makes reconnection <i>or</i> a fresh connection available. <i>Harish Agrawal</i> SCJ-601 : 4.39(b) is enabling, not a bar on another restoration path.	4.39(a) is absolute. Section 135(1A) is not. The Code never writes the override.
Deemed PD as a theft defence	<i>Ashok Kumar Ajmera</i> SCJ-1269 : "I paid nothing, so I stood deemed TD then PD" does not, in a writ, defeat a theft assessment where unauthorised drawing continued. Left for the s.127 appeal.	4.37(b) already sends unauthorised reconnection after TD to s.138. It never says a billing status is not a defence to ss.126–135.
Fifteen-day window	<i>Rathi Super Steel</i> SCJ-977 and <i>Supreme Ceramics</i> SCJ-985 : 4.36(a) and 6.1(g) both require fifteen days. Not decided on merits; the Court told the licensee to follow them henceforth.	Two clauses, one clock, no box on the bill that prints the disconnection date.
Writ will not itself reconnect	<i>Dharmendra Kumar</i> SCJ-1138 , <i>Sanjeev Kumar Singh</i> SCJ-1996 , <i>Satyapal Singh</i> SCJ-1142 , <i>Neelam Jaiswal</i> SCJ-1489 : relegated to 4.39 / 6.5 / the Executive Engineer. <i>Bhopal Singh</i> SCJ-2096 is the exception that actually restores, by reading 4.39 with 6.14 instalments.	Case-management, not a Code gap. A routing table will shrink the writs; it will not stop them.

Ten of the twenty-six cards are relegation or want of prosecution. A Code amendment will not stop a consumer walking into the High Court. A status clock plus a hard billing stop will stop the underlying illegal bill, which is the thing the Court is being asked to quash.

2. What the Code already says and the 2006 patch that did not finish the job

4.35

Apparatus. Remove meter and line after PD. Usually leave them after TD. May pull the cable on TD if there is reason to suspect unauthorised use; the meter stays.

4.36

Catalogue of TD grounds and notice periods. Fifteen days for unpaid bills, with a stay proviso and a deposit-under-protest proviso copied from s.56(1).

4.37

After TD: bill on minimum charges; Annexure 4.9; PD after six months; treat as dormant; stop billing after inspections and informing the consumer; final account. Unauthorised reconnection → s.138.

4.38

PD on (a) termination of the agreement, (b) cause of TD not removed in six months, (c) consumer request as per 4.14(g). Amdt 3: surcharge only until the s.5 notice, or eight months; security first.

4.39

(a) A PD connection shall not be reconnected; apply for a new one. (b) TD: reconnect after the cause is removed. (c)–(f) non-payment path, 24 hours, documents.

THREE TRAPS AMENDMENT 3 LEFT IN PLACE

(1) Billing stops under 4.37(a) only “after carrying out inspections and duly informing the consumer”. Skip the inspection, keep the bill — which is the Rais Ahmad five-year demand and the 6.5(d) compensation case. (2) 4.38(ii) caps *surcharge* at eight months, not minimum or fixed charges. (3) 4.39(a) is still absolute, so it collides with the second proviso to s.135(1A) (restore within forty-eight hours of the assessed amount). Annexure 4.9, as amended, now points at 4.37(a) instead of a forty-five-day threat, but it still does not print the day-181 date.

Clause 6.5(d) is the Code’s existing apology for this: if the licensee raises a bill on a permanently disconnected connection — “e.g. six months after temporary disconnection” — the consumer may write to the Managing Director and, after fifteen days of inaction, claim compensation. That is a damages clause. It is not a rule that the bill is void. The docket is full of people who needed the bill to be void.

3. New Clause 4.35A — the status clock the fork

Insert immediately before 4.35. Force a single status on every live account. Everything else in 4.36–4.39 implements that status. Rename the block in the contents from “Temporary Disconnection / Permanent Disconnection / Reconnection” so that “dormant” and “deemed PD” are named statuses, not metaphors.

DRAFT — CLAUSE 4.35A STATUS OF A CONNECTION

(a) Every connection shall, at any time, have **one, and only one**, of the following statuses, recorded on the billing system and printed on every bill:

1. **Live.** Supply is on. Clauses 4.36 to 4.39 do not apply.
2. **Temporarily disconnected (TD).** Supply is off; the meter remains. The TD date is the date the line was cut or the switch opened. Minimum charges, if any, run from this date and only as Clause 4.37 permits.
3. **Deemed permanently disconnected (deemed PD).** Automatically, at 00:00 hours on the 181st day after the TD date, if the cause of the TD has not been removed and physical PD has not already been recorded. From this instant: no energy charge, no minimum charge, no fixed charge, no late-payment surcharge accrues, whether or not an inspection has been done. The connection is dormant, awaiting a final account.
4. **Physically permanently disconnected (PD).** Meter and service line removed as Clause 4.35(i) requires. Agreement deemed terminated under Clause 4.14(f). Final account issued. Restoration is only under Clause 4.39.

(b) **Inspection is the licensee’s burden, not a condition of the clock.** If the inspection required by Clause 4.37(a) has not been carried out by day 181, deemed PD still occurs. The licensee shall issue the final account within 30 days of deemed PD. Failure to inspect or to issue the final account does not keep the account live and does not enlarge minimum charges.

(c) **Physical PD is a duty, not a discretion.** Where status is deemed PD, the licensee shall carry out physical PD (meter and line) within 15 days, after the Annexure 4.9 notice already served on TD. A consumer who has cleared current dues, or who has applied under Clause 4.14(g), may compel that step before the Consumer Grievance Redressal Forum. A consumer who still disputes the underlying bill may not, in that dispute, compel PD as a way of rewriting the bill (the *Parvati Devi* limit, now in the Code).

(d) Removing the meter during a TD is itself a physical PD, and the status and the billing stop from that date.

PRE-EMPTS Satish Kumar (SCJ-595) six-month post-TDC billing · Rais Ahmad (SCJ-1141) five-year minimum charges · Petitioner (SCJ-447) meter removed while billing continued · Parvati Devi (SCJ-281) “empower vs compel”, by splitting the billing clock from the consumer’s right to force a physical PD once dues are not in dispute · Clause 6.5(d) compensation cases, because the bill never issues

4. Minimum charges — consumer default, six-month hard stop the Harihar / Rais gap

Harihar Cold Storage had to borrow *Raymond Ltd. v. M.P. Electricity Board* because 4.37 never says that minimum charges follow the consumer’s default. *Rani Agrawal* is the same problem with an Apex Court order instead of a burnt transformer. *Surbeer Singh* guessed at seven or eight months; Amendment 3 later put an eight-month cap on *surcharge* in 4.38(ii) and never touched the underlying minimum-charge stream.

DRAFT — REWRITE CLAUSE 4.37(A)

(a) After a connection is temporarily disconnected **on a ground in Clause 4.36 that is the consumer's default** (non-payment, cheque dishonour, insufficient security, unauthorised use, refusal of access, or a safety defect the consumer was required to remove):

1. the licensee shall bill only the applicable minimum / fixed / demand charges, and no energy charge, from the TD date;
2. those charges shall run for a maximum of six months, and shall stop on the earlier of reconnection, physical PD, deemed PD under Clause 4.35A, or removal of the meter;
3. the licensee shall, on the TD date, serve Annexure 4.9 stating the TD date, the cause, the amount then due, and the calendar date of deemed PD;
4. late-payment surcharge on the pre-TD arrears continues only as Clause 4.38(ii) already provides (until the section 5 notice, or eight months, whichever is earlier), and does not run on the post-TD minimum-charge stream after deemed PD.

(a1) **No minimum, fixed or demand charge, and no late-payment surcharge, shall be levied for any period in which supply was off for a reason not the consumer's default**, including:

1. failure of the licensee's plant, line or transformer, or breach of Clause 7.07 restoration timelines;
2. disconnection required by an order of a court or the Commission;
3. a TD recorded in error, or a TD effected without the notice Clause 4.36 requires.

Where no fixed minimum sum was committed in the agreement, minimum charges also require that the licensee was in a position to give the minimum guaranteed supply (*Raymond / Harihar*).

PRE-EMPTS no-charge-when-supply-fails-by-licensee-fault (Harihar, SCJ-030) · Rani Agrawal (SCJ-684) court-ordered disconnection · Surbeer Singh (SCJ-757) seven-or-eight-month interlocutory cap, now a hard six-month stop on the charge itself · Rais Ahmad (SCJ-1141) · KESCO CGRF's six-month post-PD cap (SCJ-992), which the High Court never had to decide

5. Permanent disconnection — duty, closed list, consumer right

Clause 4.38 already uses “shall”. The docket exists because the licensee reads “shall” as “may, when it suits recovery”, and the consumer reads it as “must, so that my fixed charges die”. Split those two readings in the text.

Mohd. Asif (SCJ-1847)

A connection once granted may be disconnected only in accordance with 4.38. A father's documents denying the son's title are not a ground. The Court still had to send the consumer to 4.39 rather than restore the line itself.

Parvati Devi (SCJ-281) / Satish Kumar (SCJ-595)

Same two clauses, opposite uses. One consumer could not compel PD in a bill writ. Another licensee admitted it ought to TDC then PDC within six months and had billed only those six months on deemed PDC.

DRAFT — REWRITE THE CHAPEAU OF CLAUSE 4.38

(i) The supply shall be disconnected permanently **only** in the following cases, and in no other:

1. termination of the agreement under Clause 4.14;
2. the cause of a temporary disconnection is not removed by day 181 (physical PD of a deemed PD under Clause 4.35A — a duty);
3. on the consumer's request under Clause 4.14(g), after identity is verified and current dues (or the Clause 4.14(g) final bill) are cleared or deposited under protest.

(i-A) **Negative list.** Permanent disconnection shall not be effected for a dispute as to title, partition, occupancy or landlord–tenant rights, or on the complaint of a co-owner, unless a court has enjoined supply. Those disputes are Clause 4.4 / section 43 questions, not Clause 4.38 questions.

(ii) and (iii) remain as Amendment 3 left them (eight-month surcharge cap; security first), with the clarification that the eight-month cap also stops minimum and fixed charges if, for any reason, deemed PD under 4.35A has not yet been recorded.

PRE-EMPTS clause-4.37-4.38-licensee-empowered-to-permanently-disconnect, now split into a billing duty and a limited consumer right · Mohd. Asif title-dispute PD · Sagufta / Sarita / Jagdish Verma consumer-request line, by making identity-and-dues the only conditions

6. Merge consumer-initiated PD — 4.14(g) is 4.38(c)

Amendment 3 already rewrote 4.38(c) to “on request of consumer as described under section 4.14(g)”. The courts have not noticed, because the two clauses still look like two procedures. **Ghanshyam** was decided under 4.14(g) while the licensee was citing 4.38. **Baljeet Singh** (SCJ-1575, satellite) refused mandamus until the prescribed format was used; **Ghanshyam** said the format is directory. Put one procedure in both places.

DRAFT — ADD AS CLAUSE 4.14(G) EXPLANATION / 4.38(I)(C) NOTE

A request for permanent disconnection is the Clause 4.14(g) notice. There is no second form under Clause 4.38.

1. Any writing that asks for disconnection is enough. Annexure 4.7 is a convenience, not a condition. Want of the last bill or last receipt is not a ground to refuse: those papers are with the licensee.
2. Within 7 days the licensee shall verify that the applicant is the consumer of record (or a legal heir / authorised person) and shall not act on an application in the name of a person who is dead without substitution (*Jagdish Verma*).
3. Within the 30 days already in 4.14(g): meter reading in the consumer’s presence (or “refused”), disconnection, removal of meter and cable, final bill. Payment of that bill is a no-dues certificate. The receipt shall be stamped “P.D. Final Amount”.
4. After that receipt, no further bill, reassessment or citation shall issue on that connection. Missing departmental records are not a ground to reopen (*Ghanshyam*).
5. If the 30-day clock expires without a final bill, the agreement is already deemed terminated under 4.14(g). Status is deemed PD from that day.

PRE-EMPTS Ghanshyam (SCJ-328) post-PD demand of Rs 1,66,916 · Jagdish Verma (SCJ-1257) dead-consumer PD · Sagufta Ishrar (SCJ-357) inspect-then-PD · Baljeet Singh format objection · Satya Narayan’s warning that 4.38(c) cannot be read in isolation from 4.36 / 6.15

7. Reconnection routing table so 4.39(a) and s.135(1A) stop colliding

Clause 4.39(a) is the cleanest sentence in this block: a permanently disconnected connection shall not be reconnected; apply for a new connection. **Manoj Kumar** applied it. **Satya Prakash Singhal** could not, because the second proviso to s.135(1A) says that on deposit of the assessed amount the licensee *shall restore* within forty-eight hours. That is an Act-level override. Write it down. Also stop using 4.39 as a synonym for instalments — that is Clause 6.14, which is how **Bhopal Singh** actually restored supply.

STATUS AND CAUSE	FIRST STEP	THEN
TD, cause removed (not arrears)	Clause 4.39(b) / (f): application, documents, inspection	Reconnect within 24 hours of intimation that the cause is gone (keep the existing clock; the Rights of Consumers Rules 2020 6-hour / 12-hour clock can be adopted in the same breath if the Commission so wishes).
TD for non-payment	4.39(c)–(e): application, copy of notice, dues (or 6.14 instalment order / deposit under protest), disconnection and reconnection fee	Reconnect within 24 hours (48 hours if the cable has to be re-erected). 4.39(b) remains enabling: the licensee may restore by another mechanism if it is protected on the bills (<i>Harish Agrawal</i> — occupier on an indemnity bond).
Deemed or physical PD for non-payment	New connection under Clauses 4.1–4.3. Not a reconnection.	Arrears bar on the premises remains. Instalments, if any, are Clause 6.14, applied to the old account, not a 4.39 reconnection.
PD on theft / s.135(1A) disconnection	Second proviso to s.135(1A): restore within 48 hours of the assessed amount (or electricity charges) being deposited	Clause 4.39(a) does not apply. The authority may restore the old connection or release a fresh one; dues must be clear. Discharge in the criminal case is not, by itself, an entitlement (<i>Singhal</i>).

STATUS AND CAUSE	FIRST STEP	THEN
PD on consumer request	New connection under 4.1–4.3, if wanted	The P.D. Final Amount receipt is the no-dues certificate for that account.

DRAFT — ADD AS CLAUSE 4.39(A) PROVISO

Provided that nothing in this sub-clause shall apply to a disconnection effected under section 135(1A) of the Act. On deposit or payment of the assessed amount or electricity charges, the licensee shall restore supply within forty-eight hours, or, if restoration of the old service is not feasible, release a fresh connection on the same terms as to load and category, without treating the case as a default under Clause 4.3 solely by reason of the theft disconnection, once the assessed amount has been paid.

Provided further that Clause 4.39(b) is an enabling provision for the person whose supply was temporarily disconnected. It does not forbid the licensee from restoring supply by another lawful mechanism (including an occupier's connection on an Annexure 4.2 indemnity bond) if the licensee is protected in relation to payment of the bills.

Explanation. Instalments of arrears are granted under Clause 6.14, not under this clause. A 6.14 order may be a condition of reconnection under 4.39(c), but 4.39 is not itself an instalment power.

PRE-EMPTS reconnection-available-after-permanent-disconnection-clause-4.39 (Singhal, SCJ-1563) · Manoj Kumar (SCJ-609) PD-bars-reconnect, preserved for non-theft PD · Harish Agrawal (SCJ-601) enabling reading of 4.39(b) · Neelam Jaiswal (SCJ-1489) "instalments under 4.39" · Bhopal Singh (SCJ-2096) 6.14 + restoration, now cross-referenced instead of conflated

8. Meter stays on a temporary disconnection

Clause 4.35(ii) already says the licensee "may not" remove the meter on a TD. Clause 4.35(iii) says that even if the cable is pulled on suspicion of unauthorised use, "meter shall not be removed". **Petitioner** (SCJ-447) is the case in which the meter was removed, billing continued, and the consumer had to beg for a permanent disconnection from the TD date. "May not" is being read as "may".

DRAFT — REWRITE CLAUSE 4.35(II)–(III)

(ii) On a temporary disconnection the meter shall remain in situ, under seal, and shall continue to be read. Energy recorded after TD is evidence for Clause 4.37(b) / section 138 (and, if the facts warrant, sections 126 and 135). It is not a ground to keep the account live for minimum charges beyond Clause 4.37.

(iii) The licensee may remove the service line or cable on a TD only if there is recorded reason to suspect unauthorised use. The meter shall not be removed. If the meter is in fact removed, status becomes physical PD from that date, billing stops, and a final account shall issue within 30 days. The licensee shall not thereafter treat the case as a TD.

PRE-EMPTS SCJ-447 meter-removed-while-billing-continued · Ajmera unauthorised drawing after "deemed" disconnection, by making the left-in-situ meter the evidence instead of a status argument

9. Notice — restore what 4.36(e) took away

Amendment 3 rewrote 4.36(e) so that notice before disconnection "shall not be essential" in theft or unauthorised-use cases where the licensee has prima facie evidence. That is defensible for the offending connection under s.135(1A) (immediate disconnect, then 48-hour restoration on deposit). It is not defensible for permanently disconnecting some other connection of the same consumer, which is **Raju** (SCJ-108): PD of a connection, on an allegation of unauthorised use at another premises, with no show-cause at all, was quashed. Annexure 4.9 is the 4.37 form; it is served *after* TD. The missing form is the 4.36 notice that starts the clock.

DRAFT — 4.36(E) PROVISO, AND ANNEXURE 4.9

The Amendment 3 dispensation with notice applies only to disconnection of the connection at which theft or unauthorised use is found, and only to the extent section 135(1A) or Clause 6.8 / 8.1 already authorises an immediate cut. It does not authorise permanent disconnection of any other connection of that consumer without a Clause 4.36 notice. A permanent disconnection without the notice this Chapter requires is void, and supply shall be reinstated within 7 days without prejudice to a fresh show-cause (*Raju*).

Annexure 4.9 shall print, in bold: the TD date; the Clause 4.36 ground; the amount then due, split into energy, minimum/fixed, and surcharge; the calendar date of deemed PD (TD date + 180 days); “minimum/fixed charges will stop on that date whether or not an inspection has been done”; and the 4.39 reconnection path if the cause is removed before that date.

PRE-EMPTS notice-required-before-permanent-disconnection (*Raju*, SCJ-108) · the Annexure 4.9 / six-month mismatch · *Rathi* / Supreme Ceramics 15-day window, if the 4.36(a) notice is required to print the disconnection date not less than 15 days out, matching 6.1(g)

On the fifteen-day window itself, add one sentence under 4.36(a) and 6.1(g): the bill and the disconnection notice shall each state a due date and a disconnection date, and the disconnection date shall not be earlier than the fifteenth day after the due date. A bill that omits either date is not a Clause 4.36(a) notice. Stay of the billed amount, or a deposit under protest as already provided, remains a bar on disconnection and shall be a tick-box on the notice.

10. What this would have done to the 4.35–4.39 docket

IF THE CODE HAD SAID...	THESE CARDS LARGELY DISAPPEAR
4.35A clock: deemed PD on day 181, inspection not a condition	Rais Ahmad five-year minimum charges; Petitioner (SCJ-447) “convert my TD”; Satish Kumar’s six-month billing, which would be the rule rather than an admission; 6.5(d) compensation bills.
4.37 min charges only on consumer default, hard six-month stop, three exclusions	Harihar (licensee-fault transformer); Rani Agrawal (court-ordered disconnection); Surbeer Singh’s seven-or-eight-month guess; KESCO CGRF’s six-month post-PD cap.
4.38 “only” + negative list + duty to physically PD	Mohd. Asif title-dispute PD. Parvati Devi shrinks to its real point (you cannot use a PD prayer to rewrite a disputed bill).
One consumer-PD procedure, format directory, FINAL BILL is NDC	Ghanshyam post-PD demand; Jagdish Verma dead-consumer PD; Sagufta inspect-then-PD; Baljeet Singh format mandamus.
4.39 routing table + s.135(1A) proviso + 6.14 cross-reference	Singhal / Manoj Kumar collision; Harish Agrawal enabling reading; Neelam Jaiswal instalments-under-4.39; Bhopal Singh 6.14 restoration, now in the right clause.
Meter stays; removal = PD	SCJ-447. Ajmera’s “deemed PD so no theft” argument, because the left-in-situ meter is the evidence.
4.36(e) confined; Form 4.9 prints the deemed-PD date	Raju no-notice PD; <i>Rathi</i> / Supreme Ceramics 15-day notices.

What remains is genuine fact-finding: was the transformer the licensee’s, was the 2016 cancellation request ever filed, did anyone draw energy after the cut, is the applicant the consumer of record. The Code cannot pre-empt those. It can stop the licensee from raising a five-year minimum-charge bill, a post-PD reassessment, or a title-dispute disconnection *before* the procedure the Court has already held is mandatory.

Of the twenty-six citing cases, ten are already relegation or want of prosecution. Those do not need a Code amendment. They need the Executive Engineer to have a status the bill cannot contradict. That is Clause 4.35A.

11. Two items not to force into Clauses 4.35–4.39

Instalments live in Clause 6.14

Neelam Jaiswal was sent to “4.39” for instalments because that is what counsel said. **Bhopal Singh** restored supply by reading 4.39 with 6.14. Do not enlarge 4.39 into a poverty jurisdiction. Cross-reference 6.14 from 4.39(c) and stop.

Title and occupancy live in Clause 4.4 / s.43

Harish Agrawal (occupier restored on an indemnity bond despite the owner’s complaint) and **Mohd. Asif** (no PD on a title dispute) are the same idea from opposite ends. Put the negative list in 4.38, and leave the occupier’s connection where it is.

Sympathetic one-time settlements — **Bipin Kumar Tripathi** (SCJ-587), expressly “not a precedent” — are not a Code problem. Neither is the writ court’s refusal to try a billed amount while the undisputed part is unpaid (**Parvati Devi**). Those are Article 226. The Code’s job is to make the billed amount one that could not have been raised.

12. Case register every lean summary that cites 4.35–4.39

Chronological. Badge is the electricity outcome, not the CPC party. “Satellite” cards decide the same sequence without numbering 4.35–4.39.

SCJ-757 Surbeer Singh NONE

2009 · 4.37, 4.38

Interlocutory: 1984 Reg. 17 read with 4.37/4.38 treated as a seven-or-eight-month cap on post-disconnection minimum charges. Writ later dismissed in default.

SCJ-030 Harihar Cold Storage SPLIT

2011 · 4.37

4.37 minimum charges only where the TD is the consumer’s default, not a burnt transformer left unrepaired (Raymond applied). Rural-feeder rate; no self-help set-off.

SCJ-1269 Ashok Kumar Ajmera ALT. REMEDY

2012 · 4.36–4.38

Deemed TD/PD for non-payment does not, in a writ, defeat a theft assessment where unauthorised drawing continued. Point left for the s.127 appeal.

SCJ-977 Rathi Super Steel ALT. REMEDY

2013 · 4.36(a)

Fifteen-day window in 4.36(a)/6.1(g) not decided; licensee told to adhere henceforth. Deposit deadline fixed on the consumer’s offer.

SCJ-985 Supreme Ceramics CONSUMER

2013 · 4.36(a)

Same 15-day window. Small protection for time in litigation; clauses not construed on merits.

SCJ-113 Satya Narayan CONSUMER

2013 · 4.36, 4.38(c)

4.36 is a mandatory duty to notice-and-TD inside the 6.15/s.56(2) two-year window. 4.38(c) cannot be read in isolation to recover a stale undemanded debt. Code read as a whole.

SCJ-1138 Dharmendra Kumar ALT. REMEDY

2014 · 4.39

Reconnection after a 2009 cut, provisional bill paid and FIR lodged, is for the Executive Engineer under 4.39. Writ court will not itself reconnect.

SCJ-1141 Rais Ahmad ALT. REMEDY

2014 · 4.35, 4.37–4.39

Five years’ minimum charges challenged; relegated to CGRF / Ombudsman. Merits never reached.

SCJ-1142 Satyapal Singh ALT. REMEDY

2014 · 4.35, 4.36

Bill and restoration after a TD notice: officer to examine under 4.35/4.36 if not already PD. No merits finding.

SCJ-1563 Satya Prakash Singhal CONSUMER

2014 · 4.39 r/w s.135(1A)

After PD on theft (‘PDC final’), reconnection or a fresh connection is available under 4.39 and the second proviso to s.135(1A), subject to clearing dues. Not automatic on criminal discharge.

SCJ-1257 Jagdish Verma CONSUMER

2014 · 4.38

PD on consumer request. An application in the name of a man dead since 1985, acted on the same day without a dues report, is not that procedure. PLA restoration stands.

SCJ-1489 Neelam Jaiswal ALT. REMEDY

2016 · 4.39

Left free to seek instalments “under 4.39” as the licensee stated. (Instalments are 6.14.)

SCJ-1575 Baljeet Singh SATELLITE

2017 · PD application

No mandamus to PD until a complete application in the prescribed form. (Ghanshyam later treats the form as directory.)

SCJ-1847 Mohd. Asif ALT. REMEDY

2018 · 4.38, 4.39

A connection once granted may be disconnected only under 4.38; a title dispute is not a ground. Apply for reconnection under 4.39; EE to hear the father.

SCJ-684 Rani Agrawal ALT. REMEDY

2019 · 4.37

Whether 4.37 min charges lie for an Apex-Court-ordered disconnection, with no energy supplied, is a fact dispute. Relegated to the Forum, limitation not to be raised if in time.

SCJ-1964 Sarita Agnihotri CONSUMER

2019 · 4.38

Consumer-requested PD permitted, subject to complying with 4.38.

SCJ-1996 Sanjeev Kumar Singh ALT. REMEDY

2019 · 4.39, 6.5

Disputed bill plus reconnection after non-payment cut: EE under 6.5 read with 4.39. Writ will not try the bill.

SCJ-2096 Bhopal Singh CONSUMER

2019 · 4.39, 6.14

Restore on first instalment of accepted arrears; balance in five monthly instalments. 6.14 is the instalment power; 4.39 is the restoration path.

SCJ-992 KESCO v. CGRF NONE

2022 · 4.38

CGRF had capped post-PD billing at six months. High Court said the point required consideration; writ later dismissed for want of prosecution.

SCJ-609 Manoj Kumar PENDING

2024 · 4.39(b)

A PD connection cannot be reconnected; apply for a new connection. Interim reconnect-on-deposit modified accordingly. Writ still pending.

SCJ-601 Harish Agrawal LICENSEE

2024 · 4.39(b)

4.39(b) is enabling for the person whose supply was TD, not a bar on the licensee restoring by another mechanism (occupier on indemnity) if protected on the bills.

SCJ-595 Satish Kumar SPLIT

2024 · 4.37, 4.38

Licensee admitted: consecutive default requires TDC then PDC within six months; post-TDC billing limited to that period on deemed PDC. 2016-cut claim not proved. OTS by consent.

SCJ-108 Raju SATELLITE

2024 · notice before PD

PD without any show-cause, even on alleged UUE at another premises, is void. Reinstatement in 7 days, without prejudice to a fresh notice.

SCJ-357 Sagufta Ishrar CONSUMER

2025 · 4.38

Mandamus to finalise PD: inspect the meter in her presence, intimate dues, PD on payment within three weeks. Dating from the TD not decided.

SCJ-447 Petitioner v. PuVVNL ALT. REMEDY

2025 · 4.38(i)(b)

Whether the licensee is bound to PD after six months of TD (meter already removed, billing continuing) remitted to the EE. Duty not decided.

SCJ-281 Parvati Devi LICENSEE

2026 · 4.37(a), 4.38(b)

4.37/4.38 empower the licensee to PD after six months of unremedied TD. A consumer who disputes the bill cannot compel that step in writ. Surcharge point not reached.

SCJ-328 Ghanshyam CONSUMER

2026 · 4.14(g) (4.38 cited)

Paid “P.D. Final Amount” is a no-dues certificate; later demand of Rs 1,66,916 quashed. Format (Annexure 4.7) is directory; 30-day 4.14 process is consumer-friendly.

SCJ-587 Bipin Kumar Tripathi SPLIT

2026 · 4.36, 4.38 invoked

Disconnection-duty and s.56 not decided. Sympathetic OTS (father dead, premises empty), expressly not a precedent.

Corpus: 26 of 2,189 lean summaries in [supply-code/summaries/json/](#) mention Clause 4.35, 4.36, 4.37, 4.38 or 4.39 (2 on 4.35, 6 on 4.36, 11 on 4.37, 16 on 4.38, 12 on 4.39). Outcomes on those 26: 10 alternate-remedy, 8 consumer, 3 split, 2 licensee, 2 none, 1 pending. Two satellite cards (Raju, Baljeet Singh) are listed because they decide the same sequence. Code text is the 2005 Code as consolidated through the Third Amendment, 2006. This note is a jurisprudence extract, not a draft regulation, and is to be verified against the current notified Code before any proposal is filed with the Commission.